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****Sanctions Imposed for Non-Compliance with GDPR by Public Authorities****

The National Authority for the Supervision of Personal Data Processing completed, in 2025, two investigations into the operators Local Police of Miercurea-Ciuc Municipality and Local Police of Craiova Municipality, during which it found violations of the provisions of Article 5 paragraph (1) letter a) in relation to Article 6 paragraph (1) of Regulation (EU) 2016/679.

Both operators were sanctioned with a warning, accompanied by a corrective measure, imposed through the remediation plan, namely to ensure compliance of the processing operations carried out using portable audio-video systems of the body-cam type with the provisions of Articles 5 and 6 of the General Data Protection Regulation.

The corrective measure was applied based on the provisions of Article 58 paragraph (2) letters b) and d) of the General Data Protection Regulation, correlated with the provisions of Articles 12 - 14 of Law no. 190/2018.

The investigations conducted on the two operators were initiated following the receipt of complaints regarding violations of data protection legislation.

Thus, it was found that the operators, through personnel engaged in the missions and specific activities of the local police, processed personal data using audio-video surveillance means of the "body-cam" type (image, voice), without a legal obligation on the part of the operators and without fulfilling any other conditions provided in Article 6 paragraph (1) of Regulation (EU) 2016/679, although according to Article 5 paragraph (1) letter a) of the GDPR, the operators had the obligation to process data lawfully, fairly, and transparently concerning the data subjects.

It was found that in Law no. 155/2010 on local police, with subsequent amendments and completions, there is no express legal provision regarding the use of audio-video surveillance means.

In contrast to this situation, in Law no. 218/2002 regarding the organization and functioning of the Romanian Police, republished, with subsequent amendments and completions, there is an express legal authorization for the use of audio-video surveillance means (including body-cam type).

Thus, Article 56 of Law no. 218/2002 provides:

“(1) For the purpose of carrying out activities for the prevention, detection, investigation, or prosecution of crimes or enforcement of penalties, prevention and combating of other illegal acts, as well as maintaining public order and safety:

a) the actions of the police officer in public spaces, as well as the intervention carried out under the conditions of Article 52 or for the execution of a warrant may be recorded with the photo-audio-video means at their disposal, without the consent of the data subjects;

b) the Romanian Police is authorized to occasionally record, with photo-audio-video means or by other technical means at their disposal, operational moments regarding public activities carried out in public places, without the consent of the data subjects, in cases where there are plausible grounds to suspect that crimes or other illegal acts may be committed in these public places or public order and safety may be disturbed. (...)

(3) The processing of personal data contained in photographic images or audio and/or video recordings for purposes other than those for which they were collected is prohibited, except in situations expressly provided by law and only if the necessary guarantees for protecting the rights of the data subjects are ensured.

(4) The Romanian Police may retain photographic images or audio and/or video recordings obtained according to paragraph (1) or (2) for a period of 6 months from the date of their acquisition, except in cases where they are used in the context of a judicial procedure, in which case they follow the regime of evidence. Upon the expiration of this term, the images and/or recordings are destroyed through irreversible procedures.”

Similar situations have been investigated by the National Supervisory Authority, as indicated by the press releases that can be accessed using the links

[https://www.dataprotection.ro/?page=Comunicat_Presa_2_22_12_2020\(=ro](https://www.dataprotection.ro/?page=Comunicat_Presa_2_22_12_2020(=ro) and

[https://www.dataprotection.ro/?page=Comunicat_Presa_3_22_12_2020\(=ro](https://www.dataprotection.ro/?page=Comunicat_Presa_3_22_12_2020(=ro)).

It is worth mentioning that, previously, both the correctness of the sanctions and that of the corrective

measures applied were confirmed by final court decisions, favorable to the National Supervisory Authority, issued in other similar situations.

In this context, we emphasize that the restriction of fundamental rights to private life and the protection of personal data (enshrined especially by the Treaty on the Functioning of the European Union, the Charter of Fundamental Rights of the European Union, the European Convention on Human Rights, and the Constitution of Romania) can only be achieved by law, with strict compliance with the provisions of Article 53 of the Constitution of Romania.

In this regard, the Constitutional Court of Romania also ruled, through Decision no. 498/2018, which states, among other things:

“50. (...) It is observed that guarantees for ensuring the constitutional right provided by Article 26 are included in a Government decision, however, such a manner of regulation is totally inadequate, unduly weakening the constitutional protection of private, family, and intimate life. In practice, the administrative authority can...”

whenever it modifies the standards of guarantees associated with this right, by issuing normative administrative acts, the citizen/patient being thus at the mercy of the administrative authority. However, an adequate protection of this right is that established by law, which is not the case in the present matter. Consequently, the criticized texts violate Article 26 of the Constitution.

52. Therefore, it is the legislator's obligation to regulate the guarantees associated with the right to private, family, and personal life. This obligation must be materialized by law, in the sense of instrumentum.”

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